

S	E	R	V	E	D
October 30, 2017					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

v.

**SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY
KNOWN AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEMS LTD.**

SCHEDULING ORDER

On October 27, 2017, complainant CMI Distribution, Inc. (CMI) and respondent Service by Air, Inc. (SBA), Radiant Customs Services Inc. formerly known as SBA Consolidators, Inc. (Radiant) submitted a status report proposing a discovery schedule. Respondent LAS Freight System Ltd. (LAS Freight) apparently did not participate in the discussions or provide input into the proposed schedule and did not submit its own status report. The schedule is binding on all parties.

CMI and Radiant/SBA report that they have served their initial disclosures. The schedule below considers the proposed discovery plan and also includes the briefing schedule to ensure the parties proceed in an efficient manner. The parties shall schedule time to complete all depositions, supplemental discovery, and to have discovery motions resolved prior to the discovery cut-off date. Parties shall be prepared to proceed without any discovery requested after the discovery cut-off date.

To ensure timely progress, the parties will be required to file joint status reports on December 15, 2017, January 8, 2018, February 10, 2018, and March 16, 2018. Joint status reports should be attached to an email addressed to secretary@fmc.gov and cc'd to opposing counsel and judges@fmc.gov.

All requests for extensions will be reviewed for good cause, even if the parties agree on the requested extension. In their October 27, 2017, status report, CMI and Reliant/SBA state that because "persons and entities with knowledge of the relevant facts may be located in China, and thus difficult to obtain information from, CMI and SBA reserve the right to seek to extend the discovery deadlines set forth herein." Difficulty obtaining information from persons in China will be

considered if the parties request an extension of the discovery deadlines. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014, codified at 46 U.S.C. § 41305(e), and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding, and it is therefore in the best interests of both parties to proceed expeditiously.

For the reasons stated above, it is hereby:

ORDERED that the parties abide by the following schedule:

February 5, 2018	Completion of fact discovery. All requests for production of documents, interrogatories, and requests for admission, including any follow-up to discovery previously served, must be served sufficiently in advance of this date to permit the responding party the thirty days to respond permitted by Commission rule. 46 C.F.R. §§ 502.145(b)(2), 502.146(b)(2)(i), and 502.147(a)(3).
February 9, 2018	Identify all expert witnesses and provide expert reports
March 12, 2018	Complete all discovery
April 4, 2018	Complainant files brief, proposed findings of fact, and appendix.
May 2, 2018	Respondents file brief, proposed findings of fact, appendix, and responses to Complainant's proposed findings of fact.
May 16, 2018	Complainant files reply brief and responses to Respondents' proposed findings of fact.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall

not count toward the page limit found in Rule 214(e). Each party is directed to send a word processing version of its brief to judges@fmc.gov.

2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; *e.g.*, a page number in the appendix.¹ The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (*e.g.*, Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (*e.g.*, Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7; and

¹ Parties must designate specific facts and provide the court with their location in the record. *Orr v. Bank of Am., NT & SA*, 285 F.3d 764, 775 (9th Cir. 2002). "General references [to evidence] without page or line numbers are not sufficiently specific." *S. Cal. Gas Co. v. City of Santa Ana*, 336 F.3d 885, 889 (9th Cir. 2003).

- e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.
5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Clay G. Guthridge
Administrative Law Judge